IN THE CIRCUIT COURT HELD AT ACHIMOTA, ACCRA ON FRIDAY, THE 16TH DAY OF MAY, 2025 BEFORE HER HONOUR AKOSUA ANOKYEWAA ADJEPONG (MRS.), CIRCUIT COURT JUDGE

SUIT NO. C5/31/2024

MARY NKRUMAH ---------- PETITIONER
NO. 19 WAGYINGO APARTMENTS
ASOFAN-OFANKOR
ACCRA

VRS

MOSES ACHEAMPONG ---------- RESPONDENT
NO. 19 WAGYINGO APARTMENTS
ASOFAN-OFANKOR
ACCRA

PARTIES: PETITIONER PRESENT
RESPONDENT ABSENT

COUNSEL: RITA AMONOO-MENSAH, ESQ. FOR THE PETITIONER PRESENT
AMBROSE CORI HOLDING THE BRIEF OF KOFI SOMUAH, ESQ. FOR THE RESPONDENT PRESENT

JUDGMENT

FACTS

The parties got married under the Marriage Ordinance Cap. 127, on 18th November 2018 at Lighthouse Chapel International, Achimota, Accra. There is one issue of the marriage, namely Kaylor Korankye Acheampong, aged three (3) years at the time the petition was filed. On 17th September 2024, the Petitioner herein filed the instant petition on grounds that the marriage between her and the Respondent has broken down beyond reconciliation due to the unreasonable behaviour of the Respondent; and prayed the Court for the following reliefs;

i. The marriage celebrated between the parties on 18th November, 2018 be dissolved given that it is irretrievably broken down.
ii. That the Petitioner be given custody of the child of the marriage with reasonable access to the Respondent.
iii. An order that the Respondent maintains the child of the marriage with GHS1,000.00 per month pending suit.
iv. That the Respondent be ordered to make a monthly payment of GHS2,000.00 for the maintenance of the child and also to cater for the educational and health needs of the child until she completes tertiary education.
v. That the Respondent be ordered to pay for a 2-bedroom accommodation for the Petitioner and the issue of the marriage.
vi. Each party bears his/her cost incidental to the suit including legal fees.

In his answer to the petition, the Respondent denied the allegations of unreasonable behaviour. The Respondent cross petitioned as follows:

a. That the marriage be dissolved if that is what the Petitioner wants.
b. That the Respondent be given access to their daughter.
c. That the parties be made to share the payment of medical bills, accommodation and educational expenses of the child equally.
d. That each party bears their own cost.

I deem it necessary to mention that at the case management conference stage, Counsel for the parties submitted that, the parties had filed their Terms of Settlement on the ancillary reliefs and prayed the Court to adopt same as consent judgment.

Being a petition for divorce, as provided in *section 2(3) of the Matrimonial Causes Act, 1971 (Act 367)*, the Court shall not grant a petition for divorce unless it is satisfied on all the evidence that the marriage has broken down beyond reconciliation.

Relying on the above authority, the Court conducted a hearing on the dissolution of the marriage to enable the determination that the marriage has broken down beyond reconciliation whilst the parties' settlement on the ancillary reliefs as per their Terms of Settlement filed on 28th February 2025 will be adopted as consent judgment on the ancillary reliefs in addition to the judgment of the Court on the dissolution of the marriage.

Therefore, the hearing of the instant petition was essentially on the dissolution of the marriage since the parties had filed their Terms of Settlement on the ancillary reliefs.

<u>THE CASE OF THE PETITIONER</u>

In her evidence to the Court, the Petitioner testified among other things that the parties after the marriage cohabited at an unnumbered house belonging to the Respondent's father at Ashongman in Accra. That the parties have a daughter from the marriage called Kayla Korankye Acheampong aged 3 years. That the marriage was procured under false pretenses by the Respondent as she found out after the marriage that, a lot of the things the Respondent told her before the marriage were false. That whilst they lived in the Respondent's father's house, she was forced to rent an accommodation because it was unhealthy for them to live with the Respondent's older brother and his father. That the Respondent later joined her and that became their matrimonial home. That during the course of the marriage the Respondent would refuse to communicate with her but will relate very nicely with other people after which he will immediately change his countenance to a moody one when he needs to communicate with her.

According to the Petitioner, when they had the issue of the marriage, the Respondent refused to give her any help with caring for her. That the Respondent moved out of the matrimonial bedroom and when she enquired why he did that he told her that he did not want to be disturbed by the cry of the baby. That this led to a lot of tension in the marriage which saw the parties seeking counselling but the Respondent refused to join her in their bedroom even after the counselling. That the Respondent until recently did not provide money for maintenance or even for healthcare and left the burden of providing for the child solely on her. That the Respondent has become violent in recent times; and during a recent misunderstanding the Respondent shook her very violently and threw her on the matrimonial bed which traumatized her.

The Petitioner concluded that after several diligent efforts by members of the families of both parties as well as pastors and elders of both parties to help them settle their differences, they have not been able to reconcile these differences. She therefore prayed for her reliefs as stated above.

The Petitioner did not call witness and thereafter closed her case.

THE CASE OF THE RESPONDENT

The Respondent in his evidence confirmed his marriage to the Petitioner herein as asserted by the Petitioner; and the fact that they have one daughter.
According to the Respondent when he got married to Petitioner, he was living with his father in an apartment at Ashongman which he rented from one Mr. John Ackon because his father had not completed his house which was still under construction. That the Petitioner's challenge was that he was constantly being remitted by his mother which Petitioner claims was unhealthy and she wanted him to make money of his own money instead of receiving money from his mother. That his older brother spent only a night at his rented apartment and it is not the case that his older brother came to live with him permanently. That their matrimonial apartment has one of the bedrooms closer to the roadside and the other away from the roadside; and when the Petitioner gave birth to their only child, she opted to move to the bedroom away from the roadside, which is a lot quieter, which was just to allow their daughter to have an undisturbed sleep. That when this came up with Petitioner's Pastor, he was advised to move into the same room with Petitioner and her daughter and he moved in that same night of the advice.

According to the Respondent, he really cares about their daughter and always offer his full support to Petitioner for her sake. That as a result of his care and affection for their daughter, Petitioner, after the birth of their daughter, had enough time on her hands to complete one master's program and she is currently on her second masters. That he has always contributed to the upkeep of their daughter. That when both their daughter and the Petitioner were sick, he was the only one who took care of both Petitioner and their daughter. That as a couple, they have never had a house-help and this is basically because of the support he offers to Petitioner. That he has consistently paid all bills in the house

from rent, to utility bills, to food, school fees etc. and that he is never an irresponsible father or husband.

The Respondent continued that there was one unfortunate occasion that during a misunderstanding between himself and the Petitioner, and he was not appropriately measured in his response to the Petitioner but has since apologized profusely to the Petitioner and has pledged not to repeat such conduct under any circumstances. That numerous attempts have been made by Petitioner's friends and class mates, Petitioner's pastor in the United Kingdom who visits once in a while but Petitioner has refused counselling from Lighthouse Chapel and family members to help resolve the differences they had. That as a result of the deterioration of the relationship between him and the Petitioner, he moved out of the matrimonial home on the 6th of March 2024.

The Respondent did not also call witness and closed his case thereafter.

LEGAL ISSUE

The legal issue to be determined by this Court is whether or not the marriage between the parties has broken down beyond reconciliation.

BURDEN AND STANDARD OF PROOF

In every civil case, the general rule is that the burden of proof rests upon the party, whether Petitioner or Respondent, who substantially asserts the affirmative of his or her case.

In the case of ***Adwubeng v. Domfeh*** **[1996-97] SCGLR 660**, the Supreme Court held that in all civil actions, the standard of proof is proof by preponderance of probabilities, and there is no exception to that rule.

Section 11(4) of the Evidence Act, 1975 (NRCD 323) explains the burden of proof in civil cases as follows:

> *"In other circumstances, the burden of producing evidence requires a party to produce sufficient evidence so that on all the evidence, a reasonable mind could conclude that the existence of the fact was more probable than its non-existence*".

The standard of proof as stated therefore applies to a petition for divorce. See ***Happee v. Happee [1971] 1 GLR 104***. Thus, the burden is on the parties to prove the facts alleged to establish the breakdown of the marriage.

ANALYSIS

Before I examine the evidence adduced at the hearing, it is important to set out the relevant sections of the *Matrimonial Causes Act, 1971 (Act 367*) namely; *sections 1(2), 2(1) and (3)* which provide as follows:

> *"1(2) The sole ground for granting a petition for divorce shall be that the marriage has broken down beyond reconciliation.*
>
> *2(1) For the purpose of showing that the marriage has broken down beyond reconciliation the Petitioner shall satisfy the Court of one or more of the following facts:- ...*
>
> *(a) that the Respondent has committed adultery and that by reason of the adultery the Petitioner finds it intolerable to live with the Respondent;*

(b) that the Respondent has behaved in a way that the Petitioner cannot reasonably be expected to live with the Respondent;

(c) that the Respondent has deserted the Petitioner for a continuous period of at least two years immediately preceding the presentation of the petition;

(d) that the parties to the marriage have not lived as husband and wife for a continuous period of at least two years immediately preceding the presentation of the petition and the Respondent consents to the grant of a decree of divorce, provided that the consent shall not be unreasonably withheld, and where the Court is satisfied that it has been so withheld, the Court may grant a petition for divorce under this paragraph despite the refusal;

(e) that the parties to the marriage have not lived as husband and wife for a continuous period of at least five years immediately preceding the presentation of the petition; or

(f) that the parties to the marriage have, after diligent effort, been unable to reconcile their differences.

(3) notwithstanding that the Court finds the existence of one or more of the facts specified in subsection (1), the Court shall not grant a petition for divorce unless it is satisfied, on all the evidence that the marriage has broken down beyond reconciliation."

In the instant case, it is required that the evidence adduced by the parties herein must be able to establish one or more of the facts under *section 2(1) of Act 367* to prove that the marriage has broken down completely.

From the evidence adduced by the parties at the hearing, I made the subsequent observations and findings:

The Petitioner in her evidence testified basically to the effect that the Respondent during the subsistence of their marriage behaved unreasonably towards her by not relating nicely to her, not taking care of her and the child of the marriage, being secretive to her, among others. That the Respondent also acted violently towards her when they had a little misunderstanding.

The Respondent denied the allegations by the Petitioner against him save the allegation of him being violent towards the Petitioner and he added that he has since apologised profusely to the Petitioner and has pledged not to repeat such conduct.

From the evidence on record, there is an indication that the parties have irreconcilable differences and this led to their separation before the presentation of the present petition as their families, pastors, counsellors and friends were unsuccessful in their attempts to reconcile them.

In ***Knudsen v. Knudsen [1976] 1 GLR 204 CA***, the Court of Appeal per Amissah JA stated as follows:

> *"… Of course, in a state of affairs where the duty is placed upon the Petitioner to show that the marriage has broken down beyond reconciliation, common prudence indicates that attempts at reconciliation be made whenever possible and that where such attempts have been made without success evidence of these be given to help the Court arrive at the desired conclusion."*

The Petitioner testified that in spite of several diligent efforts by members of their families, pastors and elders to help them settle their differences, they have not been able to reconcile these differences. The Petitioner further testified under cross examination

that there is no room at all for reconciliation. It is therefore undisputable that the parties to the marriage have been unable to reconcile their differences. It is also not in issue that the Respondent likewise prays for the dissolution of their marriage.

Accordingly, I find that the parties to the marriage have, after diligent effort, been unable to reconcile their differences. I further that the parties to the marriage have been unable or failed to live together as husband and wife and the Respondent consents to the grant of a decree of divorce.

Flowing from the above, I find that the marriage between the parties has broken down beyond reconciliation.

CONCLUSION

Consequently, I conclude that the marriage between the Petitioner and the Respondent has broken down beyond reconciliation and in the circumstances; I do hereby grant the prayer of the Petitioner for dissolution of the marriage and enter judgment in the following terms;

1. I hereby grant a decree for the dissolution of the marriage celebrated between the parties on 18th November 2018 at Lighthouse Chapel International, Achimota, Accra. Thus, the marriage is hereby dissolved.
2. The marriage certificate issued to the parties herein with Certificate No. LCI/AC/61/2018 is accordingly cancelled.
3. The Terms of Settlement signed by the parties herein and their respective lawyers; and filed on the 28th day of February 2025 is hereby adopted by the Court and

entered as consent judgment on the ancillary reliefs, and as part of the final judgment of this Court in the instant petition; and the parties are bound by it.

4. Each party shall bear their own cost of the suit.

[SGD.]

H/H AKOSUA A. ADJEPONG (MRS)

(CIRCUIT COURT JUDGE)